

22SMCV02817 22SMCV02817

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C09%2F14%2F2026

Source SHA-256: abe3af01468f7d9a483f5314e8bcb3e8188c838e2ed2ba33abeef0c26a853f31

Case Number: 22SMCV02817 Hearing Date: September 14, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

GREEN & MCCAILL HOLDINGS LIMITED,

Plaintiff,

v.

JCTLA INVESTMENT CORPORATION, et al.,

Defendants.

Case No.: 22SMCV02817

Hearing Date: September 14, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO

STRIKE OR TAX DEFENDANT'S COSTS

BACKGROUND

This case arises from breach of a loan agreement. Plaintiff alleges it loaned Defendant \$529,000 bearing an interest of 8%, to be compounded annually. Defendant repaid the principal amount but failed to pay the interest due.

On June 10, 2026, Plaintiff filed a request for dismissal of its action, without prejudice. On June 26, 2026, Defendant filed a memorandum of costs (summary) which sought \$877.91 in filing and motion fees.

This hearing is on Plaintiff's motion to tax costs. Plaintiff argues that because Defendant did not itemize the pleadings or motions that correlate with the filing or motion fees, and the charges appear to include more than filing or motion fees (as they include fractional dollar amounts), Defendant's requested costs should be struck or taxed.

The hearing was originally set August 21, 2026 but Defendant claimed it did not receive the motion. Accordingly, the Court continued the hearing to this date, allowing Defendant to file an opposition by no later than August 28, 2026. Defendant has now filed its opposition.

LEGAL STANDARD

Generally, a "prevailing party" is entitled to costs. (Code Civ. Proc., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.). "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700.)

The losing party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034(a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (*Adams v. Ford Motor Co.*, (2011) 199 Cal. App. 4th 1475, 1486; 612; *South LLC v. Laconic Limited Partnership*, (2010) 184 Cal. App. 4th 1270, 1285.)

Code Civ. Proc. § 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., § 1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) A "properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

This puts the burden on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) If items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.*)

The memorandum of costs need not contain invoices, billings, or statements. (*Bach*, 215 Cal.App.3d at 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).) "Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." (*Bach*, 215 Cal.App.3d at 308.)

DISCUSSION

As a threshold matter, Plaintiff asks the Court to reconsider allowing Defendant to file a late opposition. Plaintiff's motion to tax/strike costs was originally noticed for hearing on August 21, 2026. The motion was served by email on Defendant through One Legal. Opposition papers were due nine court days before that hearing, or on August 10, 2026. (Code Civ. Proc., § 1005, subd. (b).) Defendant did not file an opposition by August 10.

At the hearing on the motion, Defendant's counsel represented that he was not served with the motion. According to Defendant, he does not receive motions or papers served through One Legal, because they are diverted to his spam or updates, and he previously informed Plaintiff he does not receive documents served by One Legal. Based on this representation, the Court continued the hearing on the motion to strike to allow Defendant to file an opposition.

In reply, Plaintiff presents evidence of One Legal's records which show that defense counsel was able to retrieve and view other documents served through One Legal, including the request for dismissal which triggered the timeline for Defendant to file its memorandum of costs. Based on this new evidence, the Court reverses its grant of leave to Defendant to file a late opposition. Defendant cannot rely on One Legal service to claim its costs and simultaneously tell the Court that One Legal service does not reach it.

Defendant's opposition, therefore, was late, and the Court has discretion to disregard a late-filed opposition, which it does so here. The effect of the Court's ruling to disregard Defendant's late-filed opposition is that Defendant has not submitted invoices to support the costs challenged. Once claimed costs are challenged, it is the obligation of the claiming party to provide documentation to establish the veracity, reasonableness and/or necessity of the costs claimed. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) Accordingly, the costs will be taxed.

CONCLUSION

For the foregoing reasons, the Court GRANTS the motion to tax costs.

IT IS SO ORDERED.

DATED: September 14, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court